

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS**

FRALY F. MAURIN,

Plaintiff,

v.

MELVIN W. CARTER,
NAVAJO EXPRESS INC., AND
NAVAJO SHIPPERS INC.

Defendants.

Case No:

COMPLAINT

Plaintiff, by and through counsels Patrick A. Turner and Dustin L. DeVaughn of DeVaughn James Injury Lawyers, for Plaintiff's claims against the Defendants, alleges and states:

A. PARTIES

1. Plaintiff, Fraly Maurin, is a citizen of the State of Kansas who resides in Dodge City, Kansas.
2. Defendant Melvin W. Carter is a citizen of the State of Utah, and resides at 112 W. 300 N, Manti, Utah 84642, and may be served at that address.
3. Defendant, Navajo Express Inc., is a Corporation incorporated in the State of Colorado with its principal place of business is in the state of Colorado. It may be served with process through its Registered Agent, Donald R. Digby Jr., 1400 West 64th Avenue, Denver, Colorado 80221.
4. Defendant, Navajo Shippers Inc., is a Corporation incorporated in the State of Colorado with its principal place of business is in the state of Colorado. It may be served with process through its Registered Agent, Donald R. Digby Jr., 1400 West 64th Avenue, Denver,

Colorado 80221.

B. VENUE AND JURISDICTION

5. This Court has jurisdiction over the persons and subject matter.
6. Venue is proper in the United States District of Court for the District of Kansas.
7. This collision took place in Ford County, Kansas on October 5, 2019.
8. This action is brought pursuant to 28 U.S.C. Section 1332(a) on the basis of diversity of citizenship.
9. The matter is in excess of the sum of Seventy-Five Thousand Dollars (\$75,000.00) exclusive of interest and costs.

C. NATURE OF ACTION

10. On October 5, 2019, Defendant Melvin W. Carter was operating a tractor trailer when he was maneuvering through the parking lot of Flying J located at 2524 E. Wyatt Earp Blvd., Dodge City, Kansas 67801, when he struck Plaintiff who inside his vehicle and was legally parked.
11. Specifically, Melvin W. Carter was negligent for the following reasons:
 - a. Inattentive operation of motor vehicle;
 - b. Failure to keep a proper lookout;
 - c. Failure to use ordinary care;
 - d. Failure to give warning;
 - e. Failure to maintain control of the vehicle
 - f. Operation of a commercial motor vehicle without first ascertaining that movement could have been safely made;
 - g. Failure to take evasive action; and
 - h. Careless driving.

12. At all times material hereto, the tractor trailer operated by Defendant Carter was owned and maintained by Defendant Navajo Express, Inc.
13. Upon information and belief, Defendant Carter was operating the motor vehicle as an agent of or within the course and scope of employment or agency with Defendants Navajo Express, Inc., and Navajo Shippers, Inc.
14. Defendants Navajo Express, Inc., and Navajo Shippers, Inc. are responsible for Defendant Carter's actions under the Doctrine of Respondeat Superior.
15. As a result of defendants' negligence, Plaintiff sustained serious bodily injury, medical expenses, lost wages, and has incurred non-economic damages such as pain and suffering. Furthermore, Plaintiff reasonably expects to incur future medical expenses, future lost wages and future non-economic damages such as pain and suffering.

WHEREFORE, Plaintiff prays for judgment against defendants in an amount in excess of Seventy-Five Thousand Dollars (\$75,000.00), for costs herein, and for such other and further relief as the Court deems just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

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DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

Plaintiff demands a pretrial conference and trial by a jury in this matter.

DESIGNATION FOR PLACE OF TRIAL

Plaintiff designates Wichita, Kansas as the place for trial of this matter.

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